Vice Consul charged in his absence with the administration of the Consulate would appear to have an unquestioned right to be present and to take the same part in the proceedings that the Consul might take if he were present. If the Consul be not actually absent from his post, but be prevented by other official business, by illness, or other sufficient cause from attending a meeting of the Council, it would seem that the Deputy Consul, or Vice Consul, might attend the meeting, at least for the purpose of explaining the reasons of the Consul's absence and reporting to him afterwards the proceedings that may be had; but to what extent the representative of the Consul in such cases might be allowed to participate in its proceedings or whether the presence at the meetings of any other persons than actual members of the Council for any purpose whatever may be allowed, are matters proper to be determined by the rules or usages of each Council.

My remarks upon the power or propriety of a Consul's action in issuing a notice to land-holders who are citizens of the United States, not to pay the rents or taxes which may have been ordered by a vote of the Municipal Council must be in the same general spirit as those already made with respect to the withdrawal of a Consul from the Council; namely, that the power, if it exists at all, is one that ought not to be exercised except in a case of

manifest error or of unquestioned wrong. As a rule such rents or taxes ought to be paid with punctuality, agreeably to the votes of the Council. Advice to resist or withhold payment of a duly assessed tax, as a general rule is disorganizing and unjustifiable. Objections to the assessment or payment might be stated in a proper manner, and due application made in such manner as may be provided by the rules of the Council for the abatement of any excess that may upon due examination prove to have been paid.

I am, Sir,
Your obedient servant,
Hamilton Fish.

No. 163. Department of State.
Washington, 30th Dec. 1872.

C. E. De Long. Esq.
re re re

Sir

Your despatches numbered 305, 306, 307, 308, 309 and 310, have been received.

I am, Sir.
Your obedient servant
Hamilton Fish.

No. 164. Department of State (Copied)
Washington, 30th Dec. 1872.

C. E. De Long. Esq.
re re re

Sir

Your despatch No. 309, under date of 22nd

DEPARTMENT OF STATE 1872

November, referring to the relations between Japan and China, has been received.

While there is much to be commended in your conversations with the Minister of Japan, as reported in this despatch, there are some points in the course of proceedings which you have followed of which the expediency and propriety may be doubted. The advice which you have offered to the Japanese authorities that peaceable means should be pursued, with an earnest effort for their success, to obtain what they desire from the Chinese, before resort is had to warlike measures, or serious preparations are made therefor, cannot be too strongly approved. The part which you have taken in the negotiation for the employment of General Le Gendre by the Japanese, with a distinct reference to the use of his services as an adviser in military operations, should they become necessary, would appear to be inconsistent with the peaceful policy thus wisely recommended. Your despatch bears witness that you are not unaware of the provision contained in the Statute of the United States. (Act of 18 August 1856. § 19. 11 Statutes at Large 59) which in distinct terms prohibits the diplomatic officers of the United States both from recommending any person at home or abroad for any employment of trust or profit, under the government of the country in which they reside, and also from asking for any person any emolument, pecuniary favor, office or title of any kind from any such government.

The approval of the Department cannot be accorded to proceedings in evasion, if not in direct contravention to these terms of the statute. With regard to your remark that you "had heard General Le Gendre say that "having once been appointed by the President "of the United States as Minister to Buenos Ayres", he would not accept office with lower rank under another government, it is proper to call your attention to the fact that General Le Gendre was not appointed to the office mentioned; it is true that he was nominated by the President to the Senate, but that body declining to advise and consent thereto, the appointment was not made. The civil rank of General Le Gendre under the government of the United States is that of Consul. It is more than doubtful whether a diplomatic representative can, consistently with the terms of the Statute, discuss such matters as these in his conversations with the Minister of the government to which he is accredited; but it is clear that anything he might feel authorized to state on such subjects should be in precise accordance with the facts.

In any conversations you may have with a view to influencing the proceedings of the Japanese government in its intercourse with China, it is advisable to induce the Japanese to separate themselves, as far as possible from the exclusive policy of the Chinese, and to adopt the progressive policy of free commercial and social intercourse with other powers. With reference to the audience question,

I enclose, confidentially, for your information, a copy of the instruction on that subject which I addressed to Mr. Low, the Minister of the United States in China, under date of the 21st instant.

I am, Sir.
Your obedient servant.
Hamilton Fish.

Enclosure.
Mr. Fish to Mr. Low, 21st Dec. 1872 (No. 113.)

No. 165. Department of State,
Washington, Jany 4th 1873

C. E. De Long, Esq.
re re re

Sir:

Your despatch No. 207, under date of 21st Novembr, has been received. It presents a gratifying statement of the condition of affairs in Japan.

With regard to the remarks in the closing portion of your despatch with reference to your action in presenting claims against the Japanese Government, it is presumed that you do not present any claims except in pursuance of instructions from this Department, and that due note has been taken of the observations contained in instructions numbered 84 and 113, which were addressed to you under dates of 20th May and 14th Octobr 1871, as well as those contained in No. 2, addressed to Mr. Shepard, Chargé d' Affaires ad interim, under date of 19th March, 1872. — I am, Sir, Your obedient servant.
Hamilton Fish.

No. 166. Department of State,
Washington, 4 Janu. 1873.

C. E. De Long, Esq.
re re re

Sir:

Referring to your No. 208 of the 22d Novembr, in which you request that despatch bags may be provided for the safe conveyance of all official matter addressed to your Legation by this Department, I have to inform you that the Postmaster General has instructed the Postmasters of Washington and San Francisco, to transmit these despatch bags in the future in the regular mails made up for San Francisco and Yokohama, respectively.

The key of the lock affixed to the bag which goes out to-day, is enclosed herewith.

I am, Sir,
Your obedient servant
Hamilton Fish.

No. 167. Department of State,
Washington, 18th Janu. 1873.

C. E. De Long, Esq.
re re re

Sir:

Your No. 296 of October 20th 1872, informing the Department of the construction claimed by the Japanese Minister of Foreign Affairs, for the thirteenth Article of the Treaty of July 1858, has been received.

As that question (which appears to have been incidentally introduced in the interview